

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

16. APRIL GREEN V. MERLIN TURNER

26FL0299

Petitioner filed an ex parte application for emergency orders regarding personal property and spousal support on May 19, 2026 and again on May 20, 2026. Respondent filed responsive declarations on May 19th and May 21st respectively. The court denied both ex parte requests on May 20th and May 22nd respectively.

Petitioner filed a Request for Order (RFO) on May 22, 2026, seeking the same orders as in the ex parte requests. Petitioner filed an Income and Expense Declaration on May 20, 2026. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Respondent filed a Responsive Declaration and a Memorandum of Points and Authorities on July 24, 2026. There is no Proof of Service for these documents, therefore, the court cannot consider them.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #16: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.